

भारतीय गैर न्यायिक INDIA NON JUDICIAL

13 NOV 2019

एक हजार रुपये

ONE THOUSAND RUPEES

रु.1000

Rs.1000

1020/19 1000/- (1000 - राजेश कुमार को दान किया गया) (1000 - राजेश कुमार को दान किया गया)
 39/11/2019 बिहार BIHAR राजेश कुमार को दान किया गया - राजेश कुमार को दान किया गया

AD 643324

Serial No. 13224

Deed No. 34



बिहार सरकार
 जिला निबंधन कार्यालय, मधेपुरा

पञ्चांगन का सारांश

दिनांक 29/11/2019 को Rajesh Kumar द्वारा यह दस्तावेज निबंधन हेतु उपस्थित किया गया। इसमें रु० 5000 मुद्रांक मुद्रांक एवं रु० 2500 निबंधन तथा अन्य शुल्क का भुगतान किया गया। इसका प्रमाण पत्र जारी किया गया।
 जिन लेखधारियों ने रु० 5000 निबंधन स्वीकार किया उनमें से एक उनका पहचानपत्र के नाम, पते, अनुमति के निश्चय एवं इसका प्रमाण पत्र जारी किया।
 रु० 2500 निबंधन से 34 के रूप में पुस्तक रु० 4 की किताब रु० 1 के पुस्तक से 372 से 384 तक CD 1 में संग्रहीत एवं कुल 13 पृष्ठों में संक्षिप्त किया गया।

S.B.I. बैंक से सत्यापित

पं० लि०. 10/11/2019

29/11/2019

TRUST DEED

रजिस्ट्रार प्रशासक सिंह
 निबंधन अधिकारी

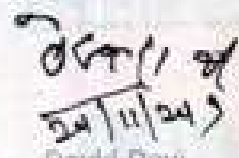
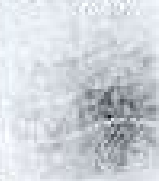
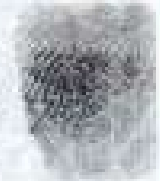
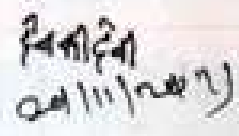
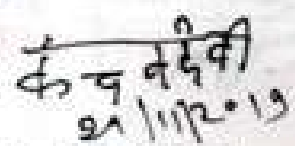
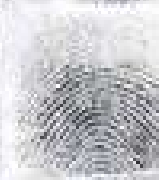
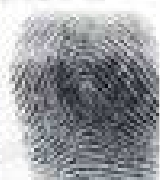
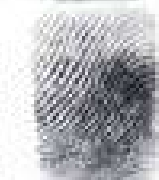
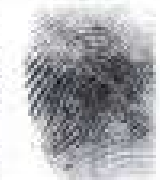
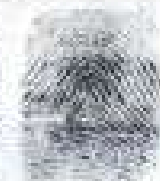
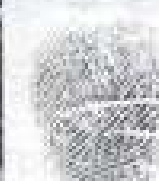
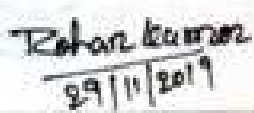
"CLAP FOUNDATION CHARITABLE TRUST"

UNDER INDIAN TRUST ACT-1882

This Deed of Public Charitable Trust executed on this the 29th day of November 2019 of the Christian Era.

CLAP FOUNDATION DEED
 29/11/2019

District Registry Office, Madhepura

Token Number 13570		Reg. Year 2019		Serial Number			Deed Number	
PresType	Name	Photo	Thumb	Index	Middle	Ring	Little	
Beneficiary	Clap Foundation Charitable Trust	X Photo	X Thumb	X Index	X Middle	X Ring	X Little	
Sig.								
Trustee	Bagnath Mahto							
Sig.								
Trustee	Devki Devi							
Sig.								
Trustee	Kanchan Devi							
Sig.								
Presented By	Rajesh Kumar							
Sig.								
Trustee	Rajesh Kumar	X Photo	X Thumb	X Index	X Middle	X Ring	X Little	
Sig.								
Trustee	Rakesh Ranjan							
Sig.								
Identified By	Rohan Kumar							
Sig.								

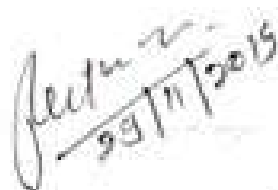
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AMONGST

Shri Rajesh Kumar, Son of **Shri Singheshwar Mahto**, resident of **At-Gauripur Ward No. 01 P.O + P.S.-Singheshwar Distt.- Madhepura (Bihar)**. Occupation- Social service; hereinafter called the '**AUTHOR/SETTLOR/CHAIRMAN**' (which expression shall, unless excluded by or repugnant to the context, be deemed to include his/her executors, administrators and representatives) of the ONE PART. Aadhar No. 8224 2230 9999
Mobile No. 9199828266

Rajesh Kumar
29/11/2019



AND

I. Shri Rakesh Ranjan, Son of **Shri Singheshwar Mahto**, resident of **At-Gauripur Ward No. 01 P.O + P.S.-Singheshwar Distt.- Madhepura (Bihar)**. Occupation- Social service; hereinafter referred to as Trustee-Cum- '**General Secretary**' Secretary (which expression shall, unless excluded by or repugnant to the context, be deemed to include the trustee or trustees for the time being of these presents and his successors in office) of the OTHER PART. Aadhar No. 917571535471 Mobile No. 8210215818

Rakesh Ranjan
29/11/2019



AND

II. Smt Devki Devi, Wife of **Shri Singheshwar Mahto**, resident of **At-Gauripur Ward No. 01 P.O + P.S.-Singheshwar Distt.- Madhepura (Bihar)**. Occupation- Social service; hereinafter referred to as Trustee-Cum- '**Treasurer**' Koshadhyaksh (which expression shall, unless excluded by or repugnant to the context, be deemed to include the trustee or trustees for the time being of these presents and his successors in office) of the OTHER PART. Aadhar No. 8404 5705 3816 Mobile No. 9546647018

Devki Devi
29/11/2019



Shri Rajesh Kumar
29/11/2019



AND

III. Shri Baijnath Mahto, Son of late Sahdev Mahto resident of At-Gauripur Ward No. 01 P.O + P.S.-Singheshwar Distt.- Madhepura (Bihar). Occupation- Social service; hereinafter referred to as 'TRUSTEE' (which expression shall, unless excluded by or repugnant to the context, be deemed to include the trustee or trustees for the time being of these presents and his successors in office) of the OTHER PART.

Aadhar No. 8379 3156 2707 Mobile No. 7070881065

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29/11/2019

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29/11/2019



AND

IV. Smt Kanchan Devi, Wife of Late Jitendra Mahto, resident of At-Gauripur Ward No. 01 P.O + P.S.-Singheshwar Distt.- Madhepura (Bihar). Occupation- Social service; hereinafter referred to as 'TRUSTEE' (which expression shall, unless excluded by or repugnant to the context, be deemed to include the trustee or trustees for the time being of these presents and his successors in office) of the OTHER PART.

Aadhar No. 9481 3123 7101 Mobile No. 9631354952

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29/11/2019



All collectively hereinafter referred to as 'TRUSTEES' (which expression shall, unless excluded by or repugnant to the context, be deemed to include the trustees or trustees for the time being of these presents and their successors in office) of the OTHER PART.

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PREAMBLE:

The Author/Settlor of this Trust are also hereinafter referred as the FOUNDER of this Trust (Which whenever the contexts so requires or admits mean/and include their legal heirs, representatives and assigns).

1. CORPUS:

Whereas Founder is desirous of creating a Public Welfare & Charitable Trust with an initial contribution of Rs. 1,00,000 /- (Rupees One lakhs One thousand rupees) only towards Corpus of the Trust which is declared as the Trust Property with a view to promote Educational, Medical, Social and Charitable Objectives).

NOW THEREFORE THIS DEED OF TRUST WITNESSETH AS FOLLOWS:-

The Founder herein creates a Trust by name " **Clap Foundation Charitable Trust** " with the objective hereinafter stated to be managed and administered by an autonomous Board of Trustees.

2. PRINCIPAL PLACE:

The Principal Place of the Trust shall be at "Clap Foundation Charitable Trust " At- New Bypass Road Sahugadh Ward No. 02, Po + PS + Distt.- Madhepura (Bihar) Pin code 852113

3. AREA OF OPERATION:

The trust will operate all over India.

5. TRUST PROPERTY & RESOURCES OF THE TRUST:

(i) Hold the above said Trust Fund and all other Funds, monies and property which may be received either by way of donations, subscriptions, gifts, income, rent, interest, dividend or otherwise, howsoever and all investment representing the Trust Fund on Trust subject to the powers, provisions, agreement and declaration hereinafter declared and contained Concerning the same.

(ii) Acquire by purchase / Lease / Mortgage / Gift / Grant/ Legacy / Bequest / Exchange, properties, rights, privileges or otherwise from any person, company, society, Government, Institution, Organization or Body whatsoever movable or immovable properties of all description deemed necessary or useful for the purpose of the Trust and

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to collect funds by public or private appeal for carrying out the objects of the Trust and to construct buildings and to effect thereon improvements and maintain them and so also to dispose, sale, lease, gift, mortgage, alienate, transfer such property or properties in pursuance of objectives of the Trust.

(iii) For the purpose of carrying out the objects of the Trust and for providing the facilities and for undertaking the activities as mentioned above the Trustees shall be entitled to utilize the funds of the Trust as well as its income in such manner as they think proper.

(vi) To open Bank Accounts and operate the said accounts by the Founder or any other trustee duly authorized by the Board of Trustees.

(v) To make rules, procedures and bye-laws for the conduct of the day to day affairs of Trust, for operation of its Institutions and to deal with its properties.

(vi) Receive contributes from within India and from abroad.

(vii) All funds, properties, rights, claims, demands of every description belonging or pertaining to the Trust now or as may hereafter be acquired from time to time shall vest in the hands of the Trustees.

6. OBJECTIVES OF THE TRUST:

A) SPIRITUALITY :

(i) To deliver and organize satsang, Pravachan, work for spiritual activities like meditation, sadhna, pranayam, yoga, to develop humanity, social welfare and charitable activities for the human leaving.

(ii) To develop sanatan Indian culture and sanskriti.

B) EDUCATION:

(i) Establishment and /or acquisition, promotion and maintenance or support of School, Colleges, Polytechnics, Management Institutions and Science Colleges, Pharmacy, Medical, Dental and Para Medical, Nursing colleges, Technical Engineering Colleges, Computer Education Institution , other institutions and job oriented courses

ii) Establishment and maintenance of and support of Professorships, Fellowships, Lectureships, Scholarships and prizes in schools, colleges or any other educational Institutions.

iii) Establishment and maintenance and support of Hostels and / or Boarding Houses and grant of free Boarding and Lodging to poor and deserving students upon such terms

Redundant



and for such period in each case as the Trustees may think fit irrespective of religion or caste.

iv) Grant of Endowments at the Universities, Research Institutions and Other Educational and Scientific Institution (Whether now existing or hereinafter established) for spread of education and knowledge in all or any branches of knowledge.

v) Awarding Scholarships and Fellowships on such terms & conditions as the Trustees may think fit for the purpose of undertaking, perpetuating and encouraging education and research Work for meritorious students/fellows:-

vi) Awarding Scholarships & cash payments to deserving poor students desirous of receiving primary, secondary or higher education.

C. MEDICAL RELIEF:

(i) To promote public charitable objects or purposes which will be or is intended to advance the well being of the people of India or for their welfare and upliftment without distinction of any caste religion or community.

(ii) To establish, maintain, run, develop, improve, extend, grant, donate for and to aid in the establishment, maintenance, running, development, improvement and extension of innovative medical projects, ambulance services, with special emphasis on trauma care, afford first aid treatment, cure and other medical relief to the public especially to the accident victims.

(iii) To establish maintain, develop and donate for the establishment maintenance and development of projects to render medical, both preventive and curative services to the industrial workers.

(iv) To establish, maintain, develop and donate for the establishment, maintenance and development of projects to render medical services in the home of the aged, the physically handicapped, the bedridden and the mentally retarded.

(v) To establish institutions or colleges for imparting education in the areas of trauma Care, medical, Para medical, Nursing and other allied subjects.

(vi) To publish literature on all aspects of health care.

(vii) To establish and maintain hospitals, clinics, medical, laboratories and research units affording facilities of medical relief basically to the accident victims, the aged, physically handicapped and mentally retarded.

(viii) To organize, run and assist in the organizing and running of medical camps in rural and slum areas. For the sake of clarity it is hereby stated that all the above objectives could be carried out for the benefit of the public at large, irrespective of the caste, creed, religion and sex.

Page 11/11



Devi
Devi

D. RELIEF TO THE POOR:

- (i) To assist and provide for the poor by constructing community halls, Rest houses, dormitories, wells, tube wells, drinking water facilities, etc., to conduct feeding of the poor and to give, food, clothing and cash grants for the poor, and to grant donations for the support of the inmates of orphanages, rescue and rehabilitation centers, and similar institutions. The poor may also be assisted by way of teaching of Crafts, engineering and similar skills, and industrial Training including on the job training.
- (ii) To undertake, carryout, promote and sponsor rural development including any programs for promoting the social and economic welfare and the upliftment of the public and or incur any expenditure on any programs of rural development programmer and to assist in the executing and promoting thereof either directly or through any agency or in any other manner.
- (iii) To give, provide and /or render help and assistance to and or implement any schemes for pro-viding livelihood and upliftment of the poor.
- (iv) To give sponsor, provide food, medicine and other help and/or assistance in any shape or form to the poor and needy.
- (v) To give, provide and / or render monetary and /or other help start, maintain and assist in any relief measure for the relief of the persons and animals affected by natural and other calamities such as flood, fire, cyclone, earthquake, storm, accident, drought, epidemic, strikes, riots and the like and to give donations, subscriptions or contributions to institutions, establishments, centers which enjoy recognitions under section 80 G of the Income Tax Act, 1961 or persons doing relief works on such occasions.
- (vi) To give, provide, distribute clothes, blankets, rugs, Woolen clothing, quilts of cotton, wool, silk or other varieties of cloths or other article of necessity and facilities for the poor and needy.
- (vii) To acquire, fund, promote or assist in cash or kind for conducting marriages of the poor or needy.



E. OTHER OBJECTIVES OF GENERAL PUBLIC UTILITY:

- (i) To establish, run and aid free public reading rooms and libraries.
- (ii) To contribute for the construction of any community hall, dharmasala, hostel, boarding house, library, reading rooms, wedding hall etc., for use by the general public.

✓

- (iii) To help, assist, contribute in cash or kind, to any association, institution or trust which has been granted approval under section 80G of the Income Tax Act, 1961 amended from time to time.

The above activities will be carried out with motive of public welfare and only nominal charges, if any, will be levied if required. However, surplus if any arising out of any of the activities of the Trust will be reinvested solely for the attainment of objectives of the Trust and will not be distributed either directly or indirectly for the benefit of the Trustees.

7. **BOARD OF TRUSTEES:-**

The Board of trustees shall comprise of a maximum of 11 Trustees and a minimum of 05 Trustees. The Founder Trustee **Rajesh Kumar** shall be the managing trustee for life. The vacancies on the Board of Trustees shall be filled in by the managing trustee in his discretion for such term as stipulated at the time of their appointment. After the managing trustee ceases to be a trustee by retirement or otherwise, the vacancies on the Board of Trustee shall be filled in by a majority of the Board of Trustees.

The managing trustee on his ceasing to be a Trustee of laying down the office of the managing trustee for any reason whatsoever, then the trustees shall appoint one amongst them as the managing trustee by a majority, for such period as may be stipulated at the time of appointment. The office of the managing trustee shall be honorary. However, the trustees are entitled to the reimbursement from the trust fund for all expenses incurred by them for the purpose of the managing of the trust.



8. **POWER OF THE BOARD OF TRUSTEES:**

- (i) That board shall have the power and authority to administer the trust, its institutions, properties, funds etc. and do all acts, deeds and things required to promote and pursue the objects of the trust. They shall be entitled to act even if their number is reduced below three due to any delay in filling up the vacancy.
- (ii) The Board shall have the power to open Bank Accounts and operate them, enter into contracts, agreements or understanding vary or rescind them, appoint, terminate or dismiss staff or employee etc.
- (iii) Institute, prosecute and defend all such/suits, legal and other proceeding on behalf of the trust.
- (iv) Prescribe from time to time the eligibility for the benefits provided by the Trust and to vary the conditions for the same from time to time.
- (v) Decide from time to time the works and projects of the Trust.

9. TRANSACTION OF BUSINESS BY THE TRUSTEES:

- (i) The Trustees may meet as often as necessary for the conduct of business of the Trust.
- (ii) The quorum for meeting shall be two third of the total trustees.
- (iii) The Managing Trustee shall maintain a record of all the proceedings of the meetings.

10. MANAGING TRUSTEE:

The Managing Trustee shall have all the powers of managing the Trust and its properties, sign documents, statements, affidavits, declaration, returns etc. for the Trust, appoint, transfer and terminate employee, open and operate Bank Accounts and attend to the day to day management of the affairs of the Trust. She shall represent the Trust in all matters before all authorities, courts, Government Departments and all bodies. He/she shall do any act, deed or thing necessary for carrying out the objects or works of the Trust subject to the directions of the Board of Trustees. Any other person may be authorized to do the same.

Praveen
27/10/2019

11. FRAMING OF RULES AND BYE LAWS:

The Trustees may frame Rules and Bye laws for the management of the Trust, its properties, institutions, personal staff and amend or rescind them as they deem fit.

12. ACCOUNTS:

The Trustees shall maintain the accounts regularly and close the Books of Account every year on 31st March. The Trustees shall duly maintain true and correct accounts of all assets, disposals, receipts and expenses of the Trust and its institutions and correct record of its meeting and deliberation. The accounts shall be audited every year by a Chartered Accountant.



13. LEGAL PROCEEDINGS:

The Managing Trustee has authority solely to institute all actions and proceedings in the name and on behalf of the Trust and the Trustees and also to defend them in respect of all matters touching the Trust, its institutions, funds and properties. It shall not be necessary to join the other trustee in such actions or proceedings.

14. INDEMNITY:

The Trustees shall be kept indemnified and harmless by the Trust against any action, claim, demand or liability arising against them for anything done by them in good faith, pursuant to the power or authority vested in them under these presents.

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15. AMENDMENTS:

The Trustees shall have the power by three fourth majorities to make Amendments to the Trust Deed as may be required for the smooth functioning of the Trust from time to time. However, no amendments to the Trust Deed shall be made which may prove repugnant to the provisions of section 29(15), 11, 12 and 13 and 80 G of the Income Tax Act. As amended from time to time. Further no amendments shall be carried out without the prior approval of the commissioner of Income Tax.

16. UTILIZATION OF INCOME:

The Funds and Income of the Trust shall be solely utilized for the achievement of its objects and no portion of its shall be utilized for payment to the Trustees by way of profit, interest, dividend or whatsoever.

17. BENEFITS OF THE TRUST:

The benefits of the trust shall be open to all, irrespective of caste, creed or religion.

18. DISSOLUTION:

The Trust hereby created is irrevocable. However, if for any reason this Trust fails or it is resolved to dissolve this Trust at any future time, the trustees shall transfer the Assets and Liabilities, Properties, Institutions and Funds to any other Charitable Trust or Society whose objects are similar to those of this Trust and which enjoys recognition u/s 80G of the Income Tax Act. 1961 as amended from time to time. The Assets remaining as on the date of dissolution shall under no circumstances be distributed among the Trustees.



Revised
29/11/2019

✓

19. INTERPRETATION:

The Trust Deed and the rules and regulation of the trust shall be interpreted by the Board of Trustee and their decisions shall be final and binding.

In witness whereof the founder & trustees hereto have hereunto seen and subscribed their respective hands, on the day, month and year first mentioned hereinabove.

Witnesses :-

Rohaan kumar

Father's kusheshwar Mahlo

At+to: Graunpur Ward no.-01
Singheshwar, Madhepura

29/11/2019

(Founder's Signature)

①

Rohaan
29/11/2019

(Trustee's Signatures)

②

Rohaan kumar
29/11/2019

Rohaan kumar
29/11/2019

Pappu Kumar

Father: Satyanarayan Yadav

At- Bloradpur

Post- Katara

Is- Singheshwar

Dist- Madhepura

29.11.19

Pappu Kumar
29/11/2019

Pappu Kumar
29/11/2019



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Operator

Endorsement of Certificate of Admissibility

Admissible under Rule 5 : duly Stamped (or exempted from or does not require stamp duty) under the Indian Stamp Act, 1899, Schedule I or I-A, No. '64'. Also admissible under section 26(a) of the B. T. Act.

Stamp duty paid under Indian Stamp Act

Rs. 5000/-

Addl. Stamp duty paid under Municipal Act

Rs. 0/-

Amt. Paid By N.J Stamp Paper

Rs. 1000/-

Amt. paid through Bank Challan

Rs. 6500/-

Registration Fee

A1	2000	C	0	H1b	0	K1a	0	L1	0
A8	0	D	0	H2	0	K1b	0	L11	0
A9	0	DD	0	I	0	K1c	0	Mb	0
A10	0	E	0	J1	0	K2	0	Na	0
B	0	H1a	0	J2	0	Li	0		
TOTAL-									2000

LLR + Proc Fee

LLR	0
Proc. Fee	0
Total	0

Service Charge

500

Total amount paid (Reg. fee+LLR, Proc+Service Charge) in Rs. - 2500

Date: 29/11/2019

Registering Officer
Madhepura

Endorsement under section 52

Presented for registration at Registration Office, Madhepura on Friday, 29th November 2019 by Rajesh Kumar Singheshwar Mahto by profession Others. Status - Trustee

Signature/L.T.I. of Presentant

Date: 29/11/2019

Registering Officer
Madhepura

Endorsement under section 58

Execution is admitted by those Executants and Identified by the person (Identified by 'Rohan Kumar' age '22' Sex 'M', 'Kusheshwar Mahto', resident of 'Goripur Singheshwar Madhepura'.), whose Names, Photographs, Fingerprints and Signatures are affixed as such on back page / pages of the instrument.

Date : 29/11/2019

Registering Officer
Madhepura

Endorsement of Certificate of Registration under section 60

Registered at Registration Office Madhepura in Book 4 Volume No. 1 on pages on 372 -384, for the year 2019 and stored in CD volume No. CD-1 year 2019 .The document no. is printed on the Front Page of the document.

Date : 29/11/2019

Registering Officer
Madhepura

Token No. : 13570 Year : 2019 S.No. : 13224 SCORE Ver.4.1

Deed No. : d No. : 34